

23STCV20111 23STCV20111

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No. 6 - John

Covarrubias, et al. v. Hussan Ahmad Malik, et al.

Plaintiffs' Motion to Reinstate Right
to Jury Trial

Plaintiffs John Covarrubias and Andrew Gonzales move for relief from their waiver of the right to a jury trial. Plaintiffs concede they did not timely pay jury fees and thereby waived that right.

Code of Civil Procedure section 631, subdivision (g) provides, "The court may, in its discretion upon just terms, allow a trial by jury although there may have been a waiver of a trial by jury." The law favors liberally granting relief from waiver of jury trial. "Courts have held that, given the public policy favoring trial by jury, the trial court should grant a motion to be relieved of a jury waiver 'unless, and except, where granting such a motion would work serious hardship to the objecting party.' [Citation.] Where doubt exists concerning the propriety of granting relief from such waiver, this doubt, by reason of the constitutional guarantee of right to jury trial [citation], should be resolved in favor of the party requesting trial by jury." (Gann v. Williams Brothers Realty, Inc. (1991) 231 Cal.App.3d 1698, 1703–1704.) "When a party that has timely given notice that it desires trial by jury then loses the jury right because of technical noncompliance with some element of statutory procedure—such as failure to pay jury fees at the right time or in the right amount—lack of hardship to the other parties or the court is generally controlling, absent other factors that weigh against relief." (TriCoast Builders, Inc. v. Fonnegra (2024) 15 Cal.5th 766, 782.)

Granting this motion serves the interests of justice.

Plaintiffs present evidence that counsel inadvertently failed to pay jury fees.

(Feldman Decl., ¶ 2.) Defendants posted jury fees in July 2025. Plaintiffs

posted the required fees on August 5, 2026. Trial is currently scheduled for

March 22, 2027. Defendants did not oppose this motion and therefore do not show

any resulting prejudice.

After considering all relevant circumstances, the Court

concludes denying relief to Plaintiffs would be inconsistent with the

“inviolate” right to a trial by jury. (Code

Civ. Proc., § 631(a).)

Disposition

Plaintiffs John Covarrubias and Andrew

Gonzales's motion to reinstate right to jury trial is granted.